BALLOT TITLE AND SUMMARY
(Prepared by San Pablo City Attorney
pursuant to California Elections Code Section 9203(a))

TITLE:

An Initiative to Impose Rent Control and to Establish Just-Cause Eviction Criteria (including mobilehomes)

SUMMARY:

The Measure would limit housing rent increases in San Pablo, with some exceptions, and specify the circumstances under which landlords may evict protected tenants (including mobilehomes).

Rent Control. State law caps rent increases for some rental units 15 or more years old, with exceptions. State law limits local rent control laws to units built before February 1995. This Measure would further cap rents for covered housing at the agreed rent as of July 1, 2025 for units occupied on that date, or the agreed rent when a tenant first occupies a unit after that date. This "Base Rent" can only be increased by an "Annual Allowable Increase" of 60 percent of the Consumer Price Index, but not less than 0 percent nor more than 3 percent, or by a Landlord's petition to the City for permission to raise rents to ensure a constitutionally adequate return on investment. Tenants may also petition the City to reduce rents if a landlord fails to maintain habitable premises.

Eviction Protections and Relocation Assistance. State law provides statewide, just-cause eviction requirements and payment to tenants of relocation expenses, with exceptions. This Measure would apply more requirements, requiring landlords to prove circumstances listed in the Measure exist to justify eviction. The Measure establishes procedures for just-cause eviction. If a tenant is evicted for cause, such as failure to pay rent, a significant breach of the lease, substantial damage to a unit, nuisance behaviors, or to allow a landlord to return to his or her home, relocation-assistance payments from landlords to tenants are not required. "No fault evictions" to allow a landlord to move into a unit he or she has not occupied before, to remove a unit from the rental market, or to allow substantial rehabilitation would require landlords to pay tenants to assist them in relocating and tenants would have a right to return to units when rehabilitation is complete or the units are otherwise returned to the market.

Other Provisions. The Measure would repeal the City's existing Tenant Relocation Assistance Ordinance and Rent Registry Ordinance, require Tenant Safety Plans to rehabilitate substandard housing, regulate agreements by which landlords buy-out tenants' rights, prohibit landlords from interfering with tenant organizing, or harassing tenants, or reducing or charging amenities (like parking or outdoor open space) included in rent, and regulate the "short-term" rental of residential units (defined as rentals for fewer than 30 consecutive days). The City would impose a rental housing fee on landlords to fund the program, initially, $120 / year for units not entirely or partially exempt; assist tenants with evictions; and provide community education.

Effect of Measure. If a majority of voters approve it, the Measure would take effect 10 days after the City Council certifies the election result. The Measure could only be amended by a vote of the People.